

Court No. - 40

Case :- WRIT - C No. - 21262 of 2023

Petitioner :- Sushil Kumar Sahu

Respondent :- Purvanchal Vidut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard Sri Arun Mishra, learned counsel for the petitioner and Sri Narendra Kumar Tiwari, learned counsel for the respondents.

2. In pith and substance, the petitioner is aggrieved that till date, respondents have not accorded any personal hearing in view of Clause 8.1 of the U.P. Electricity Supply Code, 2005 (in short "the Code").

3. Sri Narendra Kumar Tiwari, learned counsel for the respondents, on the instructions, submits that even though previously in view of Clause 8.1 of the Code the date was fixed but on the said date, reason best known to the petitioner, he had not turned up. He fairly states that in case the proceeding is still pending consideration, definitely the right of audience would be accorded to the petitioner by the competent authority.

4. Sri Arun Mishra, learned counsel for the petitioner fairly states that in case some date is fixed, definitely, on the said date, in the light of Clause 8.1 of the Code, the petitioner will appear before the competent authority.

5. Considering the facts and circumstances of the case, no useful purpose would be served in keeping the writ petition pending consideration. Accordingly, we **dispose of** the writ petition asking the petitioner to appear before the competent authority on 12.7.2023 and in case he appears on the said date, the authority would proceed to give opportunity of hearing to the petitioner and, thereafter, proceed on merits of the case.

Order Date :- 6.7.2023

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